

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 14, 2026
8:30 a.m./1:30 p.m.

2. JACOB CLARK V. NICHOLE ROEMER-CLARK

24FL0798

On February 17, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. This is a post-judgment request and as such, all required documents were personally served on Respondent on February 21st in accordance with Family Code § 215.

Respondent filed and served her Responsive Declaration to Request for Order on March 17th.

The parties attended Child Custody Recommending Counseling (CCRC) on March 24, 2026. They were able to reach agreements on some, but not all issues. As such, a report with the agreements and recommendations was prepared and mailed to the parties on April 2nd.

The Supplemental Declaration of Respondent was filed and served on April 27th.

Petitioner filed a declaration on April 30th. It was served on May 4, 2026.

Petitioner is requesting a custody and visitation schedule in accordance with the MC-025 attachment to the RFO.

Respondent requests clarification on several of the court's prior orders. She also requests three days of make-up time and an order precluding the parties from conditioning custody exchanges and routine cooperation on unilateral demands.

After reviewing the filings as outlined above, the court finds the agreements and recommendations contained in the April 2, 2026 CCRC report to be in the best interests of the minor and they are hereby adopted as the orders of the court with the following modifications and additions. The Vacation section of the CCRC report shall be amended to read as follows: "Parents shall have seven vacation days not to exceed 10 days in a row (when taken together with regular parenting time days). Vacation times do not have to be consecutive but may not be shorter than two consecutive days. Vacation time does not override the holiday schedule. The vacationing parent must notify the other parent in writing of vacation plans a minimum of 30 days in advance and provide the other parent with a basic itinerary that includes dates of leaving and returning, destinations, flight information, and telephone numbers and lodging information." Paragraph 1 of the Counseling section is amended to read – "The parties shall participate in co-parenting counseling at a frequency and duration as recommended by the counselor. The parties are to meet and confer to select a therapist. If they cannot agree on one then Respondent shall

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propose the names of three therapists to Petitioner and Petitioner shall select one of the three.”

In addition to the above, the parties are to make the minor available for phone contact with the non-custodial parent once per day for a minimum of 15 minutes at an agreed upon time. The custodial parent shall not interfere with or monitor the calls in any way. The parties are ordered to notify one another of any extracurricular activities the child is involved in, including dates and times of classes/practices and performances/games. Both parties have a right to attend all school and extracurricular activities.

All prior orders not in conflict with this order remain in full force and effect. This includes the court’s prior order regarding the right of first refusal and the court’s order for joint legal custody. As part of shared legal custody, the parties are ordered to notify one another of any medical appointments for the minor within 24 hours of making the appointment. If the custodial parent is unable to transport the minor to or from the medical appointment, the non-custodial parent shall be given the option to take the minor to the appointment prior to any third party being asked to do so.

Finally, Respondent’s request for make-up days is granted. The parties are ordered to exchange the minor on schedule regardless of whether or not there is a long weekend. This is with the exception of vacation time or the court ordered holiday schedule. As such, Respondent is granted three days of make-up time. The parties are ordered to meet and confer on the make-up days. If they cannot come to an agreement on the dates, Respondent shall have final decision making authority so long as her selection does not interfere with a preplanned vacation of Petitioner with the minor.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #2: THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE APRIL 2, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH THE FOLLOWING MODIFICATIONS AND ADDITIONS. THE VACATION SECTION OF THE CCRC REPORT SHALL BE AMENDED TO READ AS FOLLOWS:
“PARENTS SHALL HAVE SEVEN DAY’S VACATION NOT TO EXCEED 10 DAYS IN A ROW (WHEN TAKEN TOGETHER WITH REGULAR PARENTING TIME DAYS). VACATION TIMES DO NOT HAVE TO BE CONSECUTIVE BUT MAY NOT BE SHORTER THAN TWO**

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CONSECUTIVE DAYS. VACATION TIME DOES NOT OVERRIDE THE HOLIDAY SCHEDULE. THE VACATIONING PARENT MUST NOTIFY THE OTHER PARENT IN WRITING OF VACATION PLANS A MINIMUM OF 30 DAYS IN ADVANCE AND PROVIDE THE OTHER PARENT WITH A BASIC ITINERARY THAT INCLUDES DATES OF LEAVING AND RETURNING, DESTINATIONS, FLIGHT INFORMATION, AND TELEPHONE NUMBERS AND LODGING INFORMATION.” PARAGRAPH 1 OF THE COUNSELING SECTION IS AMENDED TO READ – “THE PARTIES SHALL PARTICIPATE IN CO-PARENTING COUNSELING AT A FREQUENCY AND DURATION AS RECOMMENDED BY THE COUNSELOR. THE PARTIES ARE TO MEET AND CONFER TO SELECT A THERAPIST. IF THEY CANNOT AGREE ON ONE THEN RESPONDENT SHALL PROPOSE THE NAMES OF THREE THERAPISTS TO PETITIONER AND PETITIONER SHALL SELECT ONE OF THE THREE.”

IN ADDITION TO THE ABOVE, THE PARTIES ARE TO MAKE THE MINOR AVAILABLE FOR PHONE CONTACT WITH THE NON-CUSTODIAL PARENT ONCE PER DAY FOR A MINIMUM OF 15 MINUTES AT AN AGREED UPON TIME. THE CUSTODIAL PARENT SHALL NOT INTERFERE WITH OR MONITOR THE CALLS IN ANY WAY. THE PARTIES ARE ORDERED TO NOTIFY ONE ANOTHER OF ANY EXTRACURRICULAR ACTIVITIES THE CHILD IS INVOLVED IN, INCLUDING DATES AND TIMES OF CLASSES/PRACTICES AND PERFORMANCES/GAMES. BOTH PARTIES HAVE A RIGHT TO ATTEND ALL SCHOOL AND EXTRACURRICULAR ACTIVITIES.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. THIS INCLUDES THE COURT’S PRIOR ORDER REGARDING THE RIGHT OF FIRST REFUSAL AND THE COURT’S ORDER FOR JOINT LEGAL CUSTODY. AS PART OF SHARED LEGAL CUSTODY, THE PARTIES ARE ORDERED TO NOTIFY ONE ANOTHER OF ANY MEDICAL APPOINTMENTS FOR THE MINOR WITHIN 24 HOURS OF MAKING THE APPOINTMENT. IF THE CUSTODIAL PARENT IS UNABLE TO TRANSPORT THE MINOR TO OR FROM THE MEDICAL APPOINTMENT, THE NON-CUSTODIAL PARENT SHALL BE GIVEN THE OPTION TO TAKE THE MINOR TO THE APPOINTMENT PRIOR TO ANY THIRD PARTY BEING ASKED TO DO SO.

FINALLY, RESPONDENT’S REQUEST FOR MAKE UP DAYS IS GRANTED. THE PARTIES ARE ORDERED TO EXCHANGE THE MINOR ON SCHEDULE REGARDLESS OF WHETHER OR NOT THERE IS A LONG WEEKEND. THIS IS WITH THE EXCEPTION OF VACATION TIME OR THE COURT ORDERED HOLIDAY SCHEDULE. AS SUCH, RESPONDENT IS GRANTED THREE DAYS OF MAKE UP TIME. THE PARTIES ARE ORDERED TO MEET AND CONFER ON THE MAKE UP DAYS. IF THEY CANNOT COME TO

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AN AGREEMENT ON THE DATES, RESPONDENT SHALL HAVE FINAL DECISION MAKING AUTHORITY SO LONG AS HER SELECTION DOES NOT INTERFERE WITH A PREPLANNED VACATION OF PETITIONER WITH THE MINOR.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.